

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 604

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO SEXUAL OFFENDER REGISTRATION; AMENDING SECTION 18-8316, IDAHO CODE, TO REVISE A PROVISION REGARDING A PSYCHOSEXUAL EVALUATION AND TO PROVIDE THAT FAILURE TO PROVIDE AN EVALUATION MAY BE AN AGGRAVATING CIRCUMSTANCE; AMENDING SECTION 18-8318, IDAHO CODE, TO REVISE A PROVISION REGARDING PAYMENT FOR A PSYCHOSEXUAL EVALUATION BY A DEFENDANT AND TO ESTABLISH PROVISIONS REGARDING USE OF CERTAIN FUNDING AND RESTITUTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-8316, Idaho Code, be, and the same is hereby amended to read as follows:

18-8316. REQUIREMENT FOR PSYCHOSEXUAL EVALUATIONS UPON CONVICTION. ~~If ordered by the court, an offender convicted of any offense Any person who pleads guilty to or is found guilty of a violation listed in section 18-8304, Idaho Code, may submit to an evaluation to be completed and submitted to the court in the form of a written report shall undergo, at the person's own expense, a psychosexual evaluation from a certified evaluator as defined in section 18-8303, Idaho Code, for the court's consideration prior to sentencing and incarceration or release on probation. The court shall select the certified evaluator from a central roster of evaluators compiled by the sexual offender management board. A certified evaluator performing such an evaluation shall be disqualified from providing any treatment ordered as a condition of any sentence, unless waived by the court. An evaluation conducted pursuant to this section shall be done in accordance with the standards established by the board pursuant to section 18-8314, Idaho Code. If the defendant has not made a good faith effort to provide the completed copy of the evaluation to the court, the court may consider the failure of the defendant to provide the evaluation as an aggravating circumstance in determining an appropriate sentence.~~

SECTION 2. That Section 18-8318, Idaho Code, be, and the same is hereby amended to read as follows:

18-8318. OFFENDER REQUIRED TO PAY FOR PSYCHOSEXUAL EVALUATION. The offender shall be required to pay for the cost of the psychosexual evaluations performed under this chapter, ~~unless the offender demonstrates indigency. In such case, the psychosexual evaluation performed pursuant to section 18-8316, Idaho Code, shall be paid for by the county. As a condition of sentence, indigent offenders for whom the county has paid the cost of evaluation performed pursuant to section 18-8316, Idaho Code, shall be required to repay the county for the cost. Nothing in this section shall preclude the use of funds authorized for court-ordered counseling or treat-~~

1 ment pursuant to the provisions of this section for indigent defendants, as
2 provided by law. In the event that funding is provided for or on behalf of the
3 defendant by a governmental entity, the defendant shall be ordered to make
4 restitution to such governmental entity in accordance with the restitution
5 procedure for crime victims, as provided in chapter 53, title 19, Idaho Code.

6 SECTION 3. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.